

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 11-15
Amendment to Replace Article XII and Article XIII of
the Constitution of the Chickasaw Nation**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, in accordance with Article XIII, Section 1, of the Constitution of the Chickasaw Nation, wherein the Judicial Department shall have such other jurisdiction as may be conferred upon it by the Tribal Legislature, and

WHEREAS, in accordance with Article XVIII, Section 1(a) and pursuant to Section 2, of the Constitution of the Chickasaw Nation, providing for the proposing of and voting on Amendments to the Constitution of the Chickasaw Nation.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature, hereby, adopts an amendment to the Constitution of the Chickasaw Nation and presents it to the Governor of the Chickasaw Nation for submission to a vote of the electorate in accordance with Section 2, Article XVIII of the Constitution, to wit:

The Chickasaw Nation shall repeal Article XII and Article XIII of the Constitution of the Chickasaw Nation and adopt the following Amendment:

Section 1. The Judicial powers of this Nation shall be vested in one Supreme Court, and in such inferior Courts as the Legislature shall ordain and establish in the development, maintenance and administration of the Tribal Justice System.

Section 2. The Judicial power shall extend to all cases arising under this Constitution, the laws of the Chickasaw Nation and treaties made, or which shall be made under their authority; and to all controversies to which the Chickasaw Nation shall be a party.

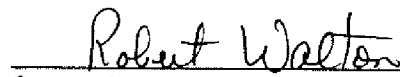
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Section 3. The Supreme Court shall consist of three Justices elected by popular vote by qualified voters of the Chickasaw Nation, and shall be qualified electors, citizens of the Chickasaw Nation at least 30 years of age, and residents of the Chickasaw Nation during their tenure of office. No person who has been convicted of a felony by any court of competent jurisdiction shall be eligible to be a Supreme Court Justice. They shall be elected for terms of three (3) years and shall serve until their successors are duly elected and installed. The Justices shall select a Chief Justice from among their number on an annual basis.

Section 4. The appellate jurisdiction of the Supreme Court shall be coextensive with the Chickasaw Nation and shall extend to all cases at law and in equity. The Supreme Court, by appropriate order, shall have the power to hear appeals, shall have the power to compel inferior Courts or their officials, and officers of the Nation to appropriate actions under law, and may exercise such other jurisdiction as may be conferred by statute.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 20, 1994, by a vote of 10 ayes, 0 nays, and 3 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur:


Bill Anoatubby, Governor
The Chickasaw Nation

Date: May 20, 1994

CHICKASAW TRIBAL LEGISLATURE

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Amendment to Replace Article XII and Article XIII of
the Constitution of the Chickasaw Nation**

Explanation: This resolution provides for an amendment to the Constitution of the Chickasaw Nation which will establish a Supreme Court and inferior courts, as the Legislature establishes in the development of the Tribal Justice System. The amendment will also repeal Article XII and Article XIII of the Constitution of the Chickasaw Nation. This amendment will be presented to the Governor of the Chickasaw Nation for submission to a vote of the electorate.

Requested by: Criminal Code Committee

Presented by: Mrs. Lisa Shephard, Chairman